



DEPARTMENT OF THE NAVY
MID-ATLANTIC REGIONAL MAINTENANCE CENTER
CONTRACTS DEPARTMENT
9727 AVIONICS LOOP
NORFOLK VA 23705-0215

J&A Number: [REDACTED]

Code: 426.2

P.R. Number: [REDACTED]

**JUSTIFICATION AND APPROVAL FOR USE OF OTHER THAN FULL AND OPEN
COMPETITION**

JUSTIFICATION

1. CONTRACTING ACTIVITY

[REDACTED]
[REDACTED]
[REDACTED]

2. DESCRIPTION OF ACTION BEING APPROVED

The justification provides for the procurement of additional work under Contract Number [REDACTED] awarded to General Dynamics NASSCO-Norfolk for Delivery Order [REDACTED].

3. DESCRIPTION OF SUPPLIES/SERVICES

The work to be performed is routine mandatory requirements which awarded contractor shall maintain while completing repairs onboard USS ARLINGTON (LPD-24) while at [REDACTED] Work Specification [REDACTED] Knuckleboom Crane; repair generated by Request for Contract Change [REDACTED] Repair work identified after contract award to General Dynamics NASSCO-Norfolk currently contract to execute Continuous Maintenance Availability (CMAV) utilizing Fiscal Year [REDACTED] and estimated [REDACTED] is required to execute the mandatory repairs while at [REDACTED] [REDACTED] The routine requirements must commence no later than [REDACTED] and are to continue until contracted Key Event Availability Completion (AC) [REDACTED] The Government's minimum needs have been verified by certifying technical and requirements personnel.

4. STATUTORY AUTHORITY PERMITTING OTHER THAN FULL AND OPEN
COMPETITION

The regulatory authority for this procurement is FAR 16.505(b)(2)(i)(A). The new work associated with this request must be issued on a sole-source basis due to the work being of such urgency that providing a fair opportunity would result in unacceptable delays. The routine requirements must commence no later than [REDACTED] and are to continue until contracted Key Event Availability Completion (AC) [REDACTED].

5. RATIONALE JUSTIFYING USE OF CITED STATUTORY AUTHORITY

General Dynamics NASSCO-Norfolk was awarded contract number [REDACTED] on Delivery Order [REDACTED] on [REDACTED] to provide for an accomplish the Continuous Maintenance Availability (CMAV) [REDACTED] 2 for USS ARLINGTON (LPD-24).

During repairs discovered existing condition issues with Knuckleboom crane requiring repair prior to certification. [REDACTED] will allow for repairs to critical components of the crane which would cause for failure of certification. Normal solicitation for bidders will cause significant delay to complete repairs and provide ship with capability to execute mission warfare areas without increasing risk during required evolutions. Sourcing contractor to complete complex repairs will exceed the required time to complete repairs [REDACTED] settlement of [REDACTED]. Other sources will required ship checks and source specialty tools and material to complete repairs which will exceed remaining duration causing delay to operational schedule and additional cost to Government to source other contractor who will delay start by 4 to 5 days to establish requirements to conduct repairs while at Naval Station, which current contractor is already established and will remain current throughout duration to complete repairs. Utilizing same contractor will allow for use of already established services to allow for work to begin soon as [REDACTED] after [REDACTED] settlement.

The Knuckleboom Crane will not stow for sea in current condition which deviates from designed storage position and causing for high risk of the crane boom and hoist to break free and become missile hazards which will cause severe damage to ship and/or causing injury or death to personnel in vicinity of the crane at time of incident. Mission areas will be degraded with unable to execute secondary emergency personnel recovery in event of man overboard or recovery of distressed vessel. Visit Board Search and Seager (VBSS) is degraded to unable to rapidly load and recover operational personnel in time of execution of vessels of interest during at-sea operations. Cargo Alongside transfer is degraded due to inability to transfer personnel and cargo safely while vessel is alongside during varying sea states. If heavy sea conditions are encountered while crane is in maintenance position, there is heighten risk for the crane boom to break free causing catastrophic damage and serious injury and death to personnel in vicinity of the boat valley area.

Execution of requirements identified in the invoked work item coincide with current awarded Contract Number [REDACTED], General-Dynamics NASSCO, Norfolk, VA. Contractor General Dynamics, NASSCO is fully capable of executing complex repairs allowing ship to return the Knuckleboom Crane to safe position for open sea operations. Utilizing other repairs facilities will cause for additional cost to initiate use of required services which are currently approved for use during current period of performance by contract awardee. The awardee bares sole responsibility in the execution of the requirements listed in the newly invoked work item.

6. DETERMINATION OF FAIR AND REASONABLE COSTS

The Contracting Officer has determined that the anticipated cost to the Government for the supplies/services covered by the J&A will be fair and reasonable. The estimated cost of this work item is based upon historical data as well as the Independent Government Estimate (IGE) and the Project Manager's (PM) technical knowledge associated with the estimated man hours and material costs to complete this work. Additionally, the contractor's fully burdened ship repair labor rate and material burden rate were determined to be fair and

reasonable at time of contract and delivery order award. The supported information provided should be sufficient to support the fair and reasonable cost determination of the procurement.

7. ACTIONS TO REMOVE BARRIERS TO COMPETITION

For reasons set forth in paragraph 5 and 6, market research was not conducted. The critical nature of the work requires that it is started immediately. Future acquisitions for similar work will be reviewed by the Contracting Officer on a case-by-case basis to promote the use of full and open competition in the acquisition process where possible under this multiple delivery-order contract, where possible and practicable in accordance with FAR Subpart 16.5. In addition, a copy of the change(s) covered by this justification will be forwarded to Code 200, Planning and Engineering, and Code 300 Waterfront Operations for consideration of similar work requirements in future solicitations.

CERTIFICATIONS AND APPROVAL

COMBINED TECHNICAL/REQUIREMENTS COGNIZANCE CERTIFICATION (FAR 16.505(b)(2)(ii)(B)(9)):

I certify that the facts and representations under my cognizance, which are included in this justification, are complete and accurate to the best of my knowledge and belief.

[Redacted Signature]

Signature

Name (Print) and Title (Code)

Phone No.

Date

LEGAL SUFFICIENCY REVIEW (NMCARS 5206.303(90)):

I have determined this justification is legally sufficient.

[Redacted Signature]

Signature

Name (Print) and Title (Code)

Phone No.

Date

COMBINED CONTRACTING OFFICER CERTIFICATION AND APPROVAL (FAR 16.505(b)(2)(i)(A)):

I certify that this justification is accurate and complete to the best of my knowledge and belief. Upon the basis of the above justification, I hereby approve, as Contracting Officer, the award of the proposed procurement as described herein using other than fair opportunity, pursuant to

J&A Number: [REDACTED]

the authority of FAR 16.505(b)(2)(i)(A), the agency need for the supplies or services is so urgent that providing a fair opportunity would result in unacceptable delays.

[REDACTED]

Signature	Name (Print) and Title (Code)	Phone No.	Date
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